

ELIZABETH II



1980 CHAPTER xii

An Act to provide for the removal of restrictions attaching to the Cane Hill Cemetery in the London borough of Croydon; to authorise the use thereof for other purposes; and for purposes incidental thereto.

[31st March 1980]

WHEREAS—

(1) The Cane Hill Cemetery Chapel (hereinafter referred to as “the chapel”) situate in Portnalls Road in the London borough of Croydon was originally constructed in or about the year 1884:

(2) There is appurtenant to the chapel a cemetery (hereinafter referred to as “the cemetery”) and the interment of human remains has taken place in that cemetery (which cemetery and the chapel are described in the Schedule to this Act and are hereinafter referred to as “the scheduled land”):

(3) The chapel was used as a chapel to the Cane Hill Mental Hospital, but has not been so used recently and it has fallen into a dilapidated state:

(4) The cemetery has not been used for burials since 29th September 1950:

(5) It is expedient that the scheduled land should be freed from all restrictions which may affect it by reason of its being a disused burial ground and that the same be permitted to be used for other purposes:

(6) It is expedient that the provisions contained in this Act with respect to the removal from the scheduled land of any human remains interred therein should be enacted:

(7) It is expedient that the other provisions contained in this Act should be enacted:

(8) The objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

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| Short title. | 1. This Act may be cited as the Cane Hill Cemetery Act 1980. |
| Interpretation. | <p>2. In this Act unless the subject or context otherwise requires—</p> <p>“enactment” includes an enactment in this Act or in any general or local Act and any order, byelaw, rule or regulation made under any Act;</p> <p>“the owner” means the person for the time being receiving the rack-rent of the scheduled land, whether on his own account or as agent or trustee for any other person, or who would so receive the same if the scheduled land were let at a rack-rent;</p> <p>“the scheduled land” means the land described in the Schedule to this Act.</p> |
| Discharge of trusts and restrictions affecting scheduled land. | 3. As from the passing of this Act the scheduled land shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever which immediately before the passing thereof attached to the scheduled land and from all other trusts, uses, obligations, disabilities and restrictions whatsoever which attached to the scheduled land or any part thereof immediately before the passing of this Act by reason of the scheduled land or any part thereof being a disused burial ground within the meaning of the Disused Burial Grounds Act 1884 and the provisions of that Act shall cease to apply to the scheduled land. |
| 1884 c. 72. | |
| Power to use scheduled land for other purposes. | 4. Notwithstanding anything contained in any enactment, but subject to the provisions of this Act, it shall be lawful at any time after the passing of this Act to use, develop, deal with or dispose of the scheduled land or any part thereof for any purpose in like manner as if no part thereof had ever been used or set apart for the interment of human remains and to demolish the chapel on the scheduled land. |
| Removal of human remains. | 5.—(1) (a) No part of the scheduled land shall be used for any purpose likely to involve the disturbance of the remains of any deceased person interred therein until those remains have been |

removed and re-interred or cremated in accordance with the following provisions of this section.

(b) Before any such remains are removed from any part of the scheduled land the owner shall give notice in accordance with subsection (3) below of the intended removal of the remains from that part of the land.

(2) No part of the scheduled land shall be used for the purpose of carrying out any work which does not involve the disturbance of the remains of any deceased person interred in any grave but which will render the grave inaccessible, until the owner has given notice in accordance with subsection (3) below that the grave will be rendered inaccessible.

(3) Notice under subsection (1) or (2) above shall describe the part of the lands or any grave to which it relates and state the general effect of the following provisions of this section, and shall be given by:—

- (a) publishing it once in each of two successive weeks in a newspaper circulating in the London borough of Croydon;
- (b) displaying it in a conspicuous place upon or near to the scheduled land; and
- (c) serving a copy of the notice on the personal representatives or a relative of any deceased person whose remains were interred after 1st January 1949 in the part of the lands, or, as the case may be, any grave to which the notice relates, being a personal representative or relative whose name and address can be ascertained after reasonable inquiry.

(4) At any time within 8 weeks after the first publication of a notice under subsection (1) or (2) above, any person who is a personal representative or relative of any deceased person whose remains are interred in the part of the lands, or as the case may be, in the grave described in the notice may give notice in writing to the owner of his intention to undertake the removal of such remains, and thereupon if such remains can be identified, he shall be at liberty to cause such remains to be removed and re-interred in any burial ground or cemetery in which burials may legally take place (but, in the case of a churchyard, only with the consent of the incumbent of the benefice concerned), or to be removed to and cremated in any crematorium, and forthwith after such re-interment or cremation shall provide to the owner a certificate for the purpose of enabling compliance with subsection (8) below.

(5) If any person giving such notice as aforesaid fails to satisfy the owner that he is such personal representative or relative as he claims to be or that the remains in question can be identified,

the question shall be determined on the application of either party by the county court, and the court shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(6) The owner shall defray the expenses of the removal and re-interment or cremation of such remains, not exceeding such sum as would be incurred by the owner in the removal and re-interment or, as the case may be, cremation of those remains or such other sum as may be reasonable in the circumstances.

(7) If—

- (a) within the said period of 8 weeks no notice under subsection (4) above has been given to the owner in respect of the remains in any grave; or
- (b) such notice is given and no application is made under subsection (5) above within 8 weeks after the giving of the notice but the person who gave the notice fails to remove the remains within a further period of 8 weeks thereafter; or
- (c) within 8 weeks after any order is made by the county court under the said subsection (5) any person, other than the owner, specified in the order fails to remove the remains; or
- (d) it is determined that the remains to which any such notice relates cannot be identified;

the owner shall be at liberty—

- (i) in the case where notice of intended removal of the remains was given under subsection (1) above, to remove the remains and cause them either to be re-interred in such burial ground or cemetery in which burials may legally take place as the owner thinks suitable for the purpose (but, in the case of a churchyard, only with the consent of the incumbent of the benefice concerned), or cremated in such crematorium as the owner thinks suitable for the purpose:

Provided that if any personal representative or relative has given notice under subsection (4) above and has satisfied the owner that he is such personal representative or relative as he claims to be and that the remains in question can be identified but does not remove the remains, the owner shall comply with any reasonable request he may make in relation to the removal and re-interment or cremation of the remains;

- (ii) in the case where notice that the grave in which remains are interred will be rendered inaccessible was given under subsection (2) above, to carry out the work that will have that effect.

(8) Upon the re-interment or cremation of any remains under this section, a certificate of re-interment or cremation shall be sent to the Registrar General by the owner giving the date of re-interment or cremation and identifying the place from which the remains were removed and the place in which they were re-interred or cremated.

(9) (a) Subject as hereinafter provided, any monument or tombstone relating to the remains of any deceased person removed and re-interred under this section shall be removed to and re-erected at the place of re-interment of such remains or at such other place as the county court may direct on the application either of such personal representative or relative as aforesaid or of the owner.

(b) Subject as aforesaid, any monument or tombstone relating to the remains of any deceased person removed and cremated under this section shall, at the request of such personal representative or relative as aforesaid, or if no such request is made, at the discretion of the owner, be removed to and re-erected at such place as may be agreed between such personal representative or relative and the owner or, in default of such agreement, at such place as the county court may direct on the application either of such personal representative or relative or of the owner.

(c) Any monument or tombstone not re-erected in accordance with paragraph (a) or (b) above shall be broken and defaced before being disposed of in such manner as the owner thinks fit.

(d) The reasonable expense of removing and re-erecting or disposing of any monument or tombstone under this subsection shall be defrayed by the owner.

(e) The owner shall cause a record to be made of each monument and tombstone taken from the scheduled land under this section containing—

- (i) a copy of the inscription thereon; and
- (ii) if it is intended to preserve the monument or tombstone, a statement naming the place, if any, where it has been re-erected;

and shall deposit a copy of the record with the Registrar General.

(f) Where the owner considers that, by reason of its illegible or ruinous condition, a monument or tombstone removed under this subsection is unsuitable for re-erection, he may dispose of the monument or tombstone in such manner as he thinks fit:

Provided that, where a personal representative or relative has made an application or a request, as the case may be, as to the place of re-erection of a headstone in accordance with paragraph (a) or (b) of this subsection, the owners shall not dispose of the headstone in pursuance of the powers in this paragraph without

first obtaining the consent in writing of that personal representative or relative or (in default of such consent) a direction of the county court on the application of that personal representative or relative or of the owner.

(g) In this subsection references to re-erection include placing a monument or tombstone in any position in which any words inscribed thereon are visible.

(10) The owner shall cause a record to be made of every grave rendered inaccessible by any such work as is referred to in subsection (2) above containing a copy of any legible inscription on any monument or tombstone on the grave.

(11) The removal of the remains of any deceased person under this section shall be carried out in accordance with any directions that may be given by the Secretary of State.

(12) Any jurisdiction or power conferred on the county court by this section may be exercised by the registrar of the court.

SCHEDULE

DESCRIPTION OF LAND REFERRED TO IN THIS ACT

Section 2.

All that piece of land in the London borough of Croydon containing in all 1.91 acres or thereabouts and fronting on to Portnalls Road, Coulsdon, and bounded on the north-east side by No. 24 Portnalls Road and on the south-east side partly by No. 26 Portnalls Road, which said piece of land is known as Cane Hill Cemetery and comprises a chapel and a burial ground.

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ARRANGEMENT OF SECTIONS

Section

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2. Interpretation.
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4. Power to use scheduled land for other purposes.
5. Removal of human remains.

SCHEDULE—Description of land referred to in this Act.

